EMMA KATE DRURY (under special power of attorney issued by the
Executor of Estate late Jan HendrikBlignaunt)
versus
RENNIE BOBO
and
MARTIN SWEMBERE
and
KUDZAI SAMURIWO
and
TAKUDZWA MUKANDI
and
CHARITY MARUNGUZA
and
CLIFFORD NYEPERAI
and
TATENDA PADZIRA
and
THE MASTER OF HIGH COURT N.O

IN THE HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE 30 May & 29 December 2025

Opposed Application

S. Njerere & *J Chifamba* for the applicant
C. Nyanhongo for the first to fifth respondent
A. Mutima for the sixth respondent
No appearance for the 7th , 8th and 9th respondent

TAKUVA J: This is a court application for summary judgment against first to sixth respondents in terms of Rule 30 of the High Court Rules, 2021.

BACKGROUND FACTS

In terms of the provisions of the Land Reform Programme the State gave notice of intent to acquire of VERGENOEG OF SWART FONTEIN FARM. However, on 21 January 2003, the late Jan Hendrick Blignaut, entered into a memorandum of agreement with the Minister of Lands Agriculture, and Rural Resettlement, the effect of which was an agreement that the late Mr Blignaut would retain ownership of the farm. This agreement was confirmed by an order of the Administrative Court case numbers LA2728/07 and 2706/02. The order confirmed that the

application to acquire the farm was dismissed. See Administrative Court order attached as Annexure E.

Since the farm was not acquired by the State, no lawful offer letters or permits could be issued out in respect of the farm. However a Lands Officer for Chikomba District, B Chiwera advised Estate Late Jan Hendrick Blignaut that he had or would be issuing offer letters in respect of the farm. Consequently, the Estate lodged an application with this court under HC 3340/22 seeking a prohibitory interdict against Mr Chiwera. No opposition was filed by neither Mr Chiwera nor the Minister of Lands and the interdict was granted –see Annexure F

Later in February 2024, the new Ministry of Lands, Agriculture, Fisheries Water and Rural Development issued a certificate of "No PRESENT INTEREST" in respect of the farm. The State confirmed that Estate Late Jan Handrick Blignaut owns the farm and that the State has no interest in the same. Apparently the first, second, third and fifth respondent purportedly hold offer letters or permits issued out by the Chikomba District office.

Applicant issued summons for eviction against the Respondents. All Respondents denied being in unlawful occupation arguing that the land belongs to the State which in turn offered it to them during the resettlement programme. Applicant contends that the Respondents have no *bona fide* defences, hence this application.

APPLICANT'S CASE

It is strongly argued by the Applicant that the Administrative Court and High Court have both confirmed the Estate is ownership of the farm. In terms of provisions of both the Land Acquisition Act and Gazetted Lands (Consequential provisions) Act, land which has not been acquired by the acquiring Authority cannot be resettled through permits or offer letters. All these alleged offer letters or permits including that purportedly held by the sixth respondent are invalid.

As such, Applicant submitted that the first to sixth Respondents have no *bona fide* defence to the applicant's actions. It is clear that they do not have any legal basis on which they are occupying the farm and should therefore vacate the same immediately or face eviction. In light of the eighth Respondent's failure to oppose the Applicant's claim, the relief sought should also be granted against him.

THE FIRST AND FIFTH RESPONDENT'S CASE

Respondents raised points *in limine* as follows:

(i) Material disputes of facts and

(ii) Material non Joinder

As regards material disputes of facts, Respondents contend that applicant is a holder of title that was gazetted in terms of the law and the Respondents were allocated plots in terms of the law. Therefore the court cannot resolve the matter without hearing evidence from both parties.

With regards to material non-joinder, the Respondents argue that the Minister of Lands and Rural Settlement who is the allocating authority and custodian of State Land must be cited.

On the merits Respondents submitted that the farm in question was gazetted as appears on the Annexure B copy of the Gazette. After the gazzetting respondents were legally allocated the land in question as appearing on their offer letters. Also, it was submitted that the certificate of NO PRESENT INTEREST was granted in error as it should have related to the remainder of the farm that belongs to the Applicant. Respondents prayed for the dismissal this matter at this stage.

THE SIXTH RESPONDENT'S CASE

It was submitted that part of the farm was subdivided and sixth Respondent was allocated part of it by the Ministry through a valid offer letter. Accordingly the sixth Respondent alleged that she is a legitimate and legal occupier of the land in question. For an offer land to be issued in terms of the Gazetted Lands (Consequential Provisions) Act the land must have been compulsory acquired by the State. Sixth Respondent attached a copy of the offer letter as Annexure A.

It was sixth Respondent's argument that the Title Deed held by the Applicant was invalidated by the provisions of section 16B (2) (a) of the previous constitution as read with section 3 of the Gazetted –Land (Consequential Provisions) Act [Chapter 20:28], whose provisions are to the effect that every former owner of gazetted land ceased to occupy , hold or use that land forty five days after the date when the land is identified in accordance with section 16B (2) (a) (iii) of the Constitution of Zimbabwe.

Further sixth Respondent contended that the memorandum of understanding that was entered into a few years prior to the coming into effect of section 16B (2) (a) of the previous constitution is invalid. Therefore, any verdict passed by the Administrative Court in regards to this land became invalid and it is irregular for this court to rely on such a judgment. Respondent

also submitted that whether or not there was a Title Deed or agreement is neither here nor there as both were suspended by the Constitution of Zimbabwe.

The sixth Respondent maintained that the Administrative Court has no jurisdiction to entertain matters brought before it by the Applicant as it had no *locus standi* to instigate legal actions relating to land in which it ceased to own, hold, use or occupy at law.

Finally, it was submitted that the Memorandum of agreement between the Applicant and the Minister of Lands in the Administrative Court and the High Court order have no bearing in this matter and it is irregular for this court to rely on them.

Before proceeding, there is one side issue that I must consider. During the hearing counsel for the sixth Respondent submitted that intended to invoke R29 of the Constitutional Court Rules 2025. The Rule provides:

> "29(2) where the person presiding over a surbodinate court is requested by a party to the proceedings to refer the matter to the Court and he or she is satisfied that the request is not frivolous or vexations, he or she shall refer the matter to the Court."

Mr Mutima requested to be given time to file written submissions to demonstrate that the application is not frivolous or vexations. I directed the parties to file their submissions within a stipulated time frames. No one filed any paper by the due dates. However Mr Mutima penned a letter to the Registrar to the effect that he failed to obtain full instructions from the clients before the due date. He further requested this court to prepare judgement that had been reserved at the end of the hearing.

In light of the failure to supply reasons, I find that the request is frivolous and vexations. The parties that made the request abandoned their request. For that reason I decline to refer the application to the Constitutional Court.

ANALYSIS

PRELIMINARY POINTS BY 1ST – 5TH RESPONDENT

1. **MATERIAL DISPUTE OF FACTS**

Respondents argued that there are material disputes of fact rendering the application incapable of resolution on the papers. On the other hand, applicant's position is that first to fifth respondents have misconstrued the law and facts relating to compulsory acquisition of land for land redistribution. Applicant insisted there are no material disputes of facts *in casu*.

It is trite that the question of whether there are material disputes of fact is for the court to decide. In *Supaplant Investment (Pvt) Ltd* v *Edgar Chidavanzi* (2009) HH 92 the Court stated;

> "A material dispute of fact arises when such material facts put by the applicant are disputed and traversed by the respondent in such a manner as to leave the court with no ready answer to the dispute between the parties in the absence of further evidence."

Herbsetein and Van Winser in their book THE CIVIL PRACTICE OF THE SUPERIR COURTS IN SOUTH AFRICA 5th edition dealt with the test on determining material disputes as follows;

> "In that event, it is more satisfactory that evidence should be led and that the court should have the opportunity of seeing and hearing witnesses before coming to a conclusion. But where the facts are really not in disputes, where the rights of the parties depend upon a question of the law, there can be no objection, but on the contrary a manifest advantage, in deciding with the matter by the speedier and less expensive method of motion." (emphasis added)

In *casu*, I find that there are no material disputes of fact between the parties that require the leading of evidence. There is enough evidence to prove Applicant's rights of owners hip of the farm. On the other hand, Respondents have totally failed to furnish this court with offer letters that form the basis of their rights of ownership in the farm. Consequently, first to fifth Respondent's opposing papers show no *bona fide* defence. It is trite that the Respondent's defence must be set out in clear and cogent detail. A bare denial of the Applicant's material averments does not suffice. The opposing papers must show a *bona fide* dispute of fact incapable of resolution without *viva voce* evidence having been heard- see van *Niekerk* v *Van Niekerk & Ors* 1999(1) ZLR 421(S) at 428F-G.

In the present matter, in the absence of any proof of their authority to occupy the farm, the Respondents defence must fail. Respondents are bound by their opposing papers and the facts and evidence supplied therein. Respondents have not substantiated their defence in anyway, therefore leaving Applicant's claim unanswered. In that regard, I find that the dispute between the parties falls on a determination of the question of whether or not Applicant's farm is State land or not. In my view this is not a question requiring evidence to be led but is a question of law based on the provisions of the LAND ACQUISITION ACT [*Chapter 20:10*] as read with the CONSTITUTIONAL AMENDMENT NO17 of 2005, and s 291 of the current Constitution.

In the final analysis, I take the view that the dispute over ownership does not amount to a dispute of fact warranting the adduction of evidence as it is capable of resolution on the papers.

MATERIAL NON-JOINDER

First to fifth Respondents argue further that there is a material non-joinder of the Ministry of Lands, necessary to resolve the dispute of the parties. It was argued that joinder is necessary because the minister is the acquiring authority of all Gazetted land. I do **n**ot share this view for the simple reason that SWARTFORNTEIN FARM is not State land, has not been lawfully acquired and is not subject to resettlement under the provisions of the Land Ressettlement Program. Accordingly, there is no legal or factual basis established by first to fifth respondents to seek the joinder of the Ministry of Lands in these proceedings.

Also, this Court has a discretion to order any person who ought to have been a party to the proceedings to be so joined as a party. See r 32 (12) (b) of the High Court Rules 2021. In the present matter, there is no need to join the Ministry of Lands because it has no interest in this matter given that the land is not classified as State Land. Evidence of this is to be found in court orders granted under LA 2728/02 and HC 3340/22 which both confirm that the farm was not acquired and is owned by the Applicant. Further, the Certificate of No Present interest by the State is conclusive proof thereof. It can not be disputed that s 291 of the Constitution protects the Estate's rights to the farm. I dismiss the argument taken by Mr Jeri on this point as it is incorrect at law.

In light of the above. I find that both points *in limine* raised by the first to fifth respondents have no merit. Both are dismissed.

MERITS

The test to be applied to summary judgment applications was set out by the Supreme Court in *Roseman Bastin* v *Kufa John Madzima* (in his capacity as the executor of the Estate Late Mhorimo Musawi Madzima) [2020] ZWSC wherein the court stated that:

> "While summary judgment is an extraordinary remedy that it deprives a litigant desirous of defending an action, the opportunity to do so without regard to the *audi alteram partem* rule, it has always been granted, by the courts to an applicant possessing an unassailable case. It is trite that such an applicant should not be delayed by resort to trial, whose outcome is a foregone conclusion. It is also trite that in order to defeat an application for summary judgment, a respondent must set out a *bona fide* defence with sufficient clarity and completeness to enable the court to decide whether the opposing affidavit discloses facts which, if proved at the trial, would entitle the responded to succeed."

It has been said that a respondent seeking to succeed against an application for summary judgment has to raise a defence which if proved at the trial will constitute a good defence to the plaintiff's claim. Secondly, the defendant has to raise a defence which is valid at *law-Siphambili and Another* v *Siphambili* [2023] ZWBHC6.

In *casu*, I find that the Applicant has an unassailable case against first to sixth Respondent. This case is predicated on the fact that it is the lawful owner of the property.

WHETHER OWNERSHIP OF THE FARM VESTS IN THE STATE

An amendment to the Constitution was effected through s 16B in 2005 which provided that all land "being agricultural land required for resettlement purposes" which had been identified in a Gazette would vest in the State. The first to sixth Respondents rely on this amendment as their sole defence. In my view, the crisp question to be determined is what is the status of land which had been identified in a Gazette for acquisition prior to 2005, but which had then not been confirmed for acquisition? This Court has since answered this question in *Vukutu (Pvt) Ltd* v *Kwinje & Anor* [2016] ZWHH 364 in the following words;

> "The applicant's right to the land was now by virtue of the Constitution, in terms of s 291. The Administrative Court Order neatly fell within the meaning of "… or other agreement with the State." In the circumstances, the purported deprivation of the applicant's right of use and occupation of Vukutu by the purported alienation of the property was unconstitutional. It is null and void."

Section 291 of the Constitution provides;

> "291 subject to this Constitution, any person who, immediately before the effective date, was using or occupying or was entitled to use or occupy, any agricultural land by virtue a lease *or other agreement with the* State continues to be entitled to use or occupy that land on or after the effective date, in accordance with that lease or other agreement." (my emphasis)

This is the case *in casu*, More significantly the 6th Respondent's offer letter cannot divest Applicant of its rights to the farm in issue. In my view, the import of s 291 of the new Constitution is that the phrase "other agreement with the State" there in protected such Memorandum of Agreement that culminated in the Administrative Court order as shown in case numbers; LA 2728/02 2706/02 in favour of Applicant.

Accordingly, the existing rights of the Applicant prevail notwithstanding the effect of section 16B of the Constitutional Amendment No 17. The land remains privately owned.

WHETHER RESPONDENTS HAVE ANY LAWFUL AUTHORITY TO OCCUPY THE FARM

In my view it logically follows that the offer letters purportedly issued to the Respondents by the Ministry of Lands, Land Reform and Resettlement and subsequent land offers of the farm would in any event be unlawful in that they are opposed to the extant Administrative Court orders and the law as set out in s 291 of the new Constitution as confirmed by this court.

In any event, the sixth Respondent's purported offer letter is invalid in that it is not in the form set out by the law under the provisions of the Agricultural Land Settlement (Permit terms

and Conditions) Regulations SI 53 of 2014. The offer letter is not signed by the Minister of Lands being the acquiring authority. The other purported offer letters were not produced. In the absence of any lawful authority to occupy the farm as provided for under s 3 of the Gazetted Lands (Consequential Provisions) Act [*Chapter 20:28*]; Respondents have no right of occupation.

As regards, the affidavit by the Permanent Secretary of the Ministry of Lands, I take the view that it is incorrect in law in that the intention to acquire was never perfected and s 291 remains effective.

DISPOSITION

In the final analysis, I find that there is sufficient evidence to demonstrate that the farm is owned by the Applicant and is not agricultural land which is vested in the State. I find also that Respondents have no lawful authority to occupy the farm without the applicant's consent. Further, the allegation by the first to sixth respondents as contained in their opposing affidavits do not reach the threshold of a defence to Applicant's claim. It follows therefore that *in casu*, there are no triable issues that have been advanced to resist the summary judgment application as the provisions of s 291 of the new Constitution, the principle relating to retrospectivity of the law, and the improper form of the offer letters invalidate all first to sixth Respondents' arguments and any possible defence which could be raised by the respondents generally. As a result, first to sixth Respondents have no *bona fide* defence to Applicants' claim and the opposition is merely a dilatory tactic.

The first to eighth Respondents are in unlawful occupation of the farm. The only Respondent to oppose this application being the sixth Respondent has failed to demonstrate any reasonable possibility that an injustice may be done if summary judgment is granted in favour of Applicant. The case made by the Applicant justifies the granting of the application for summary judgment.

In the result, it is hereby ordered that:

1. Judgment be and is hereby granted in favour of the Applicant against the first, second, third, fourth, fifth, sixth and eighth Respondents and all other persons claiming occupation through them and or all other persons in use, possession or control of any part of **VERGENOEG of SWARTFONTEIN FARM.**
2. First, second, third, fourth, fifth, sixth and eighth Respondents and all other persons claiming occupation of Vergenoeg of Swartfontein farm without the consent of the Applicant shall vacate the afore mentioned farm within forty-eight hours of granting of this order.
3. In the event that first, second, third, fourth, fifth, sixth and eighth respondent refuse or fail to vacate Vergenoeg Farm as ordered above, the Sheriff of Zimbabwe or his assistant

be and are hereby authorised and empowered to evict first, second, third, fourth, fifth, sixth and eighth Respondents and all acting through them, and to demolish any structures erected by the said Respondents and to enlist the assistance of any member of the ZRP to attend to the ejectment of such persons and demolition of all structures; and

4. First, second, third, fourth, fifth, sixth and eighth Respondents shall pay the costs of this application, the one paying the others to be absolved.

TAKUVA J:……